SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 04/23/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule* 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:31 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:
Parties to appear.

2. 9:00 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: VEG SAN RAMON, LLC,
TENTATIVE RULING:

Plaintiff Robin Fernandez brought this action against VEG San Ramon LLC DBA Veterinary Emergency Group San Ramon and Tyra Eggert for (1) veterinary professional negligence, (2) intentional infliction of emotional distress, (3) fraud and deceit, (4) conversion (trespass to chattels), (5) violation of consumer legal remedies act, and (6) unfair business practices. She seeks economic, emotional distress, punitive, exemplary, and compensatory damages, as well as restitution, injunctive relief, attorneys' fees, and the peculiar economic value of her deceased pet. Defendants demurrer to the Second through Sixth Causes of Action in Plaintiff's complaint. Defendants were unable to meet and confer with Plaintiff despite efforts to do so, and approximately one month after the filing of this Motion, Plaintiff's counsel filed a request to be relieved as counsel—that hearing is set for May 14, 2026. The Court received no opposition to this Demurrer, but did receive a notice that current Plaintiff's counsel will be appearing remotely.

<u>Analysis</u>

"In reviewing the legal sufficiency of a demurrer, we are not concerned with plaintiff's ability to prove the allegations of the complaint, or the possible difficulties in making such proof. Neither are we bound by the trial court's construction of the pleadings; instead, we exercise our independent judgment in determining whether the complaint states a cause of action." (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.)

<u>Second Cause of Action – Intentional Infliction of Emotional Distress</u>

The elements of a cause of action for IIED are as follows: (1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.) Additionally, "'[i]t must be conduct *directed at the plaintiff*, or occur in the presence of the plaintiff *of whom the defendant is aware*.' [Citation.] 'The requirement that the defendant's conduct be directed primarily at the plaintiff is a factor which distinguishes intentional infliction of emotional distress from the negligent infliction of such injury.'" (*Id.* at p. 1002.) Defendants argue that their actions were not directed at Plaintiff, thereby defeating the IIED claim. The requirement, however, is only that the actions have been done in her presence. That is alleged here.

Plaintiffs does not, however satisfy the requirement of pleading an intentional act that rose to "extreme and outrageous conduct." Beyond a conclusory statement that "Defendants' conduct went beyond mere negligence and constituted a reckless disregard for the probability of causing Plaintiff severe emotional distress," there is no explanation of how this conduct rises above professional negligence. The allegations state, at most, that Defendants failed to perform confirmatory tests and mistakenly diagnosed Jackson (the cat) with an untreatable condition. This is the gravamen of professional negligence. Defendants' demurrer to the Second Cause of Action is **sustained**.

<u>Third Cause of Action – Fraud and Deceit</u>

The essential elements of fraud that give rise to a cause of action for deceit or intentional misrepresentation are: (a) misrepresentation (false representation, concealment, or nondisclosure);

(b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) actual and justifiable reliance; and (e) resulting damage. (See *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.) Defendants aver that there was no misrepresentation of Jackson's test results. Plaintiff claims that Dr. Eggert relied on the more concerning test results, but never alleges that the less concerning test results were concealed. Absent this allegation, there is insufficient support for the Third Cause of Action. (*See also Stone v. Foster* (1980) 106 Cal.App.3d 334, 346 ("Defendant's representations as to the result of the operation do not support a claim of fraud. Fraud is an intentional tort.").) The demurrer to this cause of action is therefore **sustained.**

<u>Fourth Cause of Action – Conversion (Trespass to Chattel)</u>

The essential elements of conversion are: (1) the plaintiff owned or had the right to possess the personal property; (2) the defendant disposed of the property in a manner inconsistent with the plaintiff's property rights; and (3) resulting damages. (*Voris v. Lampert* (2019) 7 Cal.5th 1141, 1150–1151.) The defendant's conduct "must be knowingly or intentionally done," but a "*wrongful intent*" or motive is not a requirement. (*Taylor v. Forte Hotels International* (1991) 235 Cal.App.3d 1119, 1124.) Defendant argues that because Plaintiff consented to the euthanasia, and there is no allegation that Defendants "acted without authorization or forced Plaintiff to consent," this claim cannot lie. The Court does not see support for this proposition in the cases cited by Defendant. For the same reason that the fraud claim contains no allegations of intentional misbehavior, however, this claim also fails. (*Cf. Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1272.) The demurrer to this cause of action is therefore **sustained**.

<u>Fifth Cause of Action – Violation of Consumer Legal Remedies Act (Civ. Code § 1750)</u>

The source of Plaintiff's Fifth Cause of Action is somewhat vague. She alleges: "Defendants violated § 1770(a) by: (a) representing the characteristics, uses, or benefits of their veterinary services that they did not have (§ 1770(a)(5)); and (b) representing that services were of a particular standard or quality when they were of another (§ 1770(a)(7)). Plaintiff does not allege § 1770(a)(9) absent specific advertising allegations and reserves that subsection pending discovery." Plaintiff does not, however, allege what was missing from the Defendants' representations. The demurrer to this cause of action is therefore **sustained**.

<u>Sixth Cause of Action – Unfair Business Practices (Bus. & Prof. Code § 17200)</u>

Plaintiff's final cause of action for unfair competition law (UCL) violation is similarly unclear. She alleges that the conduct violated several unexplained statutes, and therefore is additionally unlawful pursuant to Business and Professions Code section 17200. She fails to explain how one-to-one alleged professional negligence constitutes fraudulent business practice toward the public, or how it is "immoral, unethical, oppressive, unscrupulous, and substantially injurious to consumers." The demurrer to this cause of action is therefore **sustained**.

<u>**Ruling**</u>

In light of the foregoing, the demurrer to the Second through Sixth Causes of Action is sustained. The Court will grant leave to amend. Plaintiff must amend within fifteen days of the ruling on the pending

Motion to Be Relieved as Counsel.

3. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
***CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

The Court **continues** the case management conference to April 30, 2026.

4. 9:05 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
***HEARING ON MOTION IN RE: STRIKE PLTFS COMPLAINT**
FILED BY: VEG SAN RAMON, LLC,
****TENTATIVE RULING:****

Plaintiff Robin Fernandez brought this action against VEG San Ramon LLC DBA Veterinary Emergency Group San Ramon and Tyra Eggert for (1) veterinary professional negligence, (2) intentional infliction of emotional distress, (3) fraud and deceit, (4) conversion (trespass to chattels), (5) violation of consumer legal remedies act, and (6) unfair business practices. She seeks economic, emotional distress, punitive, exemplary, and compensatory damages, as well as restitution, injunctive relief, attorneys' fees, and the peculiar economic value of her deceased pet. By this motion, Defendants seek to strike from Plaintiff's complaint the requests for emotional distress, punitive, exemplary, and compensatory damages (as to the Sixth Cause of Action), as well as restitution, injunctive relief and the peculiar economic value of the pet. Defendants were unable to meet and confer with Plaintiff despite efforts to do so, and approximately one month after the filing of this Motion, Plaintiff's counsel filed a request to be relieved as counsel—that hearing is set for May 14, 2026. The Court received no opposition to this Motion, but did receive a notice that current Plaintiff's counsel will be appearing remotely.

Analysis

Emotional Distress Damages

Plaintiff cannot recover emotional distress damages for veterinary malpractice. (*McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1514-1515.) There is nothing in the complaint supporting any extension of these tort damages to this matter. This claim will therefore be stricken.

Punitive Damages

A claim for punitive damages must be supported by specific factual allegations. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Civil Code section 3294, subdivision (a) provides: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." Plaintiff has included no allegations of oppressive, fraudulent, or malicious conduct. This claim will therefore be stricken.

Exemplary Damages

California Civil Code § 3340 allows for exemplary damages for wrongful injuries to animals that are committed willfully or by gross negligence, in disregard of humanity. Plaintiff has included no such damages. This claim will therefore be stricken.

Restitution and Injunctive Relief

"[T]here is no right to equitable relief or an equitable remedy when there is an adequate remedy at law." (*Martin v. County of Los Angeles* (1996) 51 Cal.App.4th 688, 696.) Aside from seeking a refund of amounts paid—which is also the compensatory damages sought—Plaintiff has presented no support for injunctive relief or restitution (except as to the Sixth Cause of Action, if it survives demurrer). The lack of specificity as to what the injunctive relief could possibly be in this matter demonstrates that the pleading is insufficient to support such a claim. These claims will therefore be stricken from all but the Sixth Cause of Action, if it survives demurrer.

Compensatory Damages Under the Unfair Competition Law (UCL) – Sixth Cause of Action

A UCL action is equitable in nature; damages cannot be recovered. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1144.) This claim will therefore be stricken.

Peculiar Damages

Peculiar value under Civil Code section 3355 refers to a property's unique economic value, not its sentimental or emotional value. . . . "[P]eculiar value" . . . refer[s] to special characteristics, which increase the animal's monetary value, not its abstract value as a companion to its owner. (*McMahon*, supra, 176 Cal.App.4th at 1518.) As *McMahon* explains, "We recognize the love and loyalty a dog provides creates a strong emotional bond between an owner and his or her dog. But given California law does not allow parents to recover for the loss of companionship of their children, we are constrained not to allow a pet owner to recover for loss of the companionship of a pet. (*Id.* at 1519-1520.) This claim will therefore be stricken.

Ruling

Defendants' Motion is therefore **granted** except to the extent the Sixth Cause of Action survives demurrer, in which case a claim for restitution remains.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-02652
CASE NAME: HONAKER VS. CHP OFFICER DONNIE THOMAS
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: CHP OFFICER DONNIE THOMAS
TENTATIVE RULING:

This matter is scheduled for hearing on **May 7, 2026, at 9:00 am** in this department.

6. 9:00 AM CASE NUMBER: C24-01703
CASE NAME: BLACK DIAMOND PAVER STONES AND LANDSCAPES, INC. VS. HIRSCH CLOSSON
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS ON APPEAL**
FILED BY: HIRSCH CLOSSON
****TENTATIVE RULING:****

Defendant Hirsch Closson seeks attorneys' fees and costs for work done on appeal in this matter. Plaintiff Black Diamond Paver Stones and Landscapes, Inc, opposes this request, arguing that the amount sought is unreasonably high. Hirsch Closson also seeks costs on the original case, noting that Black Diamond has not sought to tax those costs.

Background

In response to Plaintiff's complaint, Defendant filed a Special Motion to Strike Pursuant to Code of Civil Procedure Section 425.16 (anti-SLAPP). Defendant Prevailed on that motion and the Court dismissed the matter. Defendant sought attorneys' fees. Plaintiff did not oppose those fees. Plaintiff did, however, appeal the anti-SLAPP dismissal. The Court of Appeal affirmed this court's decision. Defendant now seeks fees and costs for the appeal.

Analysis

Code of Civil Procedure section 425.16 provides: "(c)(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." This provision additionally provides for attorneys' fees for a defendant successfully defending on appeal the trial court's grant of an anti-SLAPP motion. (*See, e.g.*, *Evans v. Unkow* (1995) 38 Cal.App.4th 1490.) The question before the Court today is whether the fees and costs requested by Hirsch Closson are "reasonable."

It is acknowledged that, while Hirsch Closson sought approximately $28,000 in fees and costs at the trial court stage, it now seeks approximately $44,000 (after the reply brief) for the costs on appeal and through this motion. The amount sought for successfully defending on appeal and then seeking costs is therefore approximately 1.5 times the amount sought for the motion itself. Black Diamond avers that this amount is unreasonable because the appeal was "straightforward." Black Diamond ignores, however, that appeals necessarily involve additional work in preparing, reviewing, and presenting the record, and in confirming and expanding legal research. Additionally, Hirsch Closson explains that issues not fully raised at the trial court level were subject to increased or new attention at the appellate level. Upon review of Hirsch Closson's request, the amounts sought appear reasonable to the Court.

Ruling

Hirsch Closson's motion (and memorandum of costs) are therefore **granted**. The Court awards $76,203 in attorneys' fees and interest and $2,106.33 in costs and interest for a total of $78,309.33.

7. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION IN RE: JUDGEMENT ON THE PLEADINGS**
FILED BY:
<u>*TENTATIVE RULING:*</u>

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant Freedom Forever, LLC ("Defendant"). The Motion argues that the second cause of action (financial elder abuse), third cause of action (negligent misrepresentation), fourth cause of action (negligence), and fifth cause of action (Business and Professions Code, §17200, et seq.), fail to state facts sufficient to constitute causes of action.

For the reasons discussed below, the Court's tentative ruling is to **GRANT** Defendant's motion for judgment on the pleadings as to the second cause of action for financial elder abuse, the third cause of action for negligent misrepresentation, and the fifth cause of action for violation of Business & Professions Code section 17200 et seq., with leave to amend. Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc., § 438, subd. (h)(2).)

<u>Meet and Confer</u>

The meet and confer requirement has been satisfied. (Stephen A. Horner Decl., ¶¶ 2-7; CCP, § 439, subd. (a)(3)(A).)

<u>Legal Standard for Motion for Judgment on the Pleadings</u>

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"].) (*See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [" 'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"].) A motion for judgment on the pleading may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)
The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438, subd. (d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.*

(2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Background: Facts Alleged in Complaint

On August 8, 2024, plaintiffs Kathleen Caballero and Kathleen Vega ("Plaintiffs") filed the complaint ("Complaint") in this matter. The Complaint alleges claims against defendant Freedom Forever, LLC for breach of contract, financial elder abuse, negligent misrepresentation, negligence, and violation of Business and Professions Code section 17200, et seq.

On April 28, 2021, Plaintiff Vega entered into an agreement ("Contract") with Defendant for the installation of a solar system on Plaintiffs' real property, located at 4902 Chardonnay Court, Oakley, CA 94561. (Complaint, ¶ 9.) The Contract stated that the work would be completed within 60 days from commencement of the work, which would begin after all permits are obtained and the property is ready for installation. (*Id*., at ¶ 11, Exh. A.) Work began around April 30, 2021. (*Id*., at ¶ 12.) Defendant was to install the system on the roof, in addition to the preexisting solar panels that Plaintiffs already had. (*Ibid*.) The work included the installation of a 125-amp main panel breaker to run the system, which Defendant recommended. (*Ibid*.)

Around May 1, 2021, PG&E performed an inspection pursuant to the Contract and informed Plaintiffs that the new solar system from Defendants could not be connected because an improper electrical panel had been installed. (Complaint, ¶ 13.) Further, the preexisting solar system had been disconnected by Defendant. (*Id*., at ¶ 14.) In June of 2021, Defendant told Plaintiffs that work was being held up because the city had not yet approved the necessary permit. (*Id*., at ¶ 16.) In October 2021, the city informed Plaintiffs that Defendant had requested a permit but that no permit was approved. (*Id*., at ¶ 19.) By late January/early February 2023, Defendant had installed the correct amp breaker, received the necessary permits, and the solar system was correctly installed and functioning. (*Id*., at ¶ 20.)

Discussion

Second Cause of Action for Financial Elder Abuse

Defendant argues that this claim fails because Plaintiffs have not alleged facts constituting a "taking" under California's financial elder abuse statute. (Motion for Judgment on the Pleadings ["Motion"], pp. 8-10.) Plaintiffs assert that Plaintiff Caballero was deprived of her existing solar panel benefits for extended periods during the delays in installation of the new panels, due to Defendant's technician disconnecting the previously existing solar system. (Opposition, p. 5.) On reply, Defendant argues that Plaintiffs have not pled facts for this in their complaint. (Reply, p. 3.) Defendant also argues that even with a deprivation of property sufficient to be a taking, etc., that this must still be for a wrongful use, with an intent to defraud, or by undue influence. (*Id*., at pp. 2-3.)

The elements of a claim for financial elder abuse are as follows:

> (a) 'Financial elder abuse of an elder or dependent adult occurs when a person or entity does any of the following:
>
> (1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.
>
> (2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.
>
> (3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 1575 of the Civil Code.

(Welf. & Inst. Code, § 15610.30, subd. (a).) "A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult." (Welf. & Inst. Code § 15610.30, subd. (b).) Further, "a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right. . ." (*Id*., at subd. (c).)

The Court finds that Plaintiffs have not alleged with sufficient particularity how Defendant deprived Plaintiff Caballero of her property rights as to her existing solar panels (1) for a wrongful use, (2) with an intent to defraud, or (3) by undue influence. (Complaint, ¶¶ 1-41; *Covenant Care, Inc. v. Super. Ct*. (2004) 32 Cal.4th 771, 790 (California Supreme Court describing the "general rule that statutory causes of action must be pleaded with particularity"].) The Contract was entered into on April 28, 2026, and work began on April 30, 2021. (Complaint, ¶¶ 9, 12.) PG&E inspected the property on May 1, 2021, and informed Plaintiffs that Defendant did not install the correct electrical panel and that the previously installed solar panels were disconnected by Defendant's technicians. (*Id*., at ¶ 14.) The lack of particularity relates to the fact that Plaintiffs do not allege what conduct of Defendant shows that Defendant, at the time of disconnecting the preexisting solar panels prior to May 1, 2021, did so for a wrongful use, or with an intent to defraud, or by undue influence. (Complaint, ¶¶ 1-41.)

The Court grants Defendant's motion for judgment on the pleadings as to Plaintiffs' second cause of action for financial elder abuse, with leave to amend.

<u>Third Cause of Action for Negligent Misrepresentation</u>

"[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed."

(*Rattagan v. Uber Technologies, Inc*. (2024) 17 Cal.5th 1, 20-21.)

Defendant argues that Plaintiffs' claim for negligent misrepresentation fails because it is barred by the economic loss rule due to their allegations not going beyond contract duties. (Motion, pp. 11-12.) Plaintiffs disagree and argue that "Plaintiff has alleged that, during the negotiations leading up to the Contract, Defendant FF made positive assertions that Plaintiff's existing solar panel system and electrical components were sufficient to equip FF's solar panel addition, and that FF was equipped and competent enough to handle this job because FF has done solar panel additions just like this to work cohesively with Plaintiffs' existing solar panel system without issue." (Opposition, p. 6.) On reply, Defendant argues that Plaintiffs have not alleged such independent misrepresentations. (Reply, p. 6.)

The Court agrees with Defendant that the Complaint does not support Plaintiffs' assertion that they "alleged that, during the negotiations leading up to the Contract, Defendant FF made positive assertions that Plaintiff's existing solar panel system and electrical components were sufficient to equip FF's solar panel addition, and that FF was equipped and competent enough to handle this job because FF has done solar panel additions just like this to work cohesively with Plaintiffs' existing solar panel system without issue." (Opposition, p. 6.) The Complaint contains few allegations about the representations Defendant made prior to entering into the Contract. At paragraph 44 of the Complaint, Plaintiffs allege that "Defendant made certain representations and assurances to Plaintiffs regarding its ability to reasonab[ly] execute the Contract, quality of workmanship involved, and avoid or at least mitigate hazards it may create." These allegations come close to what Plaintiffs' opposition asserts they alleged in their Complaint, but if Plaintiffs intended to allege that Defendant represented that Plaintiffs' existing solar panel system and electrical components were sufficient to equip their solar panel additions, this is not properly communicated by the allegation at paragraph 44 of the Complaint. Additionally, the Court notes that Plaintiffs' negligent misrepresentation allegations lack the specificity typically required for negligent misrepresentation claims. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.)

The Court grants Defendant's motion for judgment on the pleadings as to the third cause of action, for negligent misrepresentation, with leave to amend.

<u>Fourth Cause of Action for Negligence</u>

Plaintiffs dismissed their fourth cause of action for negligence on February 24, 2026, and Defendant's demurrer to this claim is now moot.

<u>Fifth Cause of Action for Violation of Business & Professions Code section 17200 et seq.</u>

Defendant argues that Plaintiffs have failed to plead their UCL claim with the required particularity. (Motion, p. 12.) Plaintiffs assert that they have properly pled this claim because they alleged that Defendant asserted unconscionable extension and force majeure exculpatory provisions in its adhesion contracts, forced all customers to agree to its adhesion contracts, systematically misinformed consumers that its own failures are caused by the municipality or the utility company, mischaracterize change orders, revisions, and corrections as homeowner requests, and maintaining that it could not be liable for its nonperformance because of its exculpatory limitation of liability clauses. (Opposition, pp. 7:22-8:8.) On reply, Defendant argues that "these allegations are entirely conclusory and not based on allegations in the Complaint. Plaintiffs do not identify which specific contract provisions are unconscionable, why they are unconscionable, or how they affect consumers generally rather than just these Plaintiffs." (Reply, p. 6:23-28.)

The Court agrees with Defendant that the allegations Plaintiffs assert support this claim (Opposition, pp. 7-8) are not actually pleaded in the Complaint. The allegations pled by Plaintiffs in the complaint are conclusory and not specific. For example, "Freedom Forever has engaged in unfair and unlawful business practices in the State of California." (Complaint, ¶ 63.) "Freedom Forever's business acts and practices, have caused substantial harm to California consumers, including Plaintiffs and members of the public by enforcing deceptive business acts and practices in companies engaged in contracting work on residential properties that will likely cause consumers to lose protection and the opportunity to fair competition in commercial markets for related goods and services." (*Id*., at ¶ 59.) Plaintiffs' allegations in support of their UCL claim are insufficiently specific and overly conclusory. (*Khoury v. Maly's of Cal*. (1993) 14 Cal.App.4th 612, 617 ["A plaintiff alleging unfair business practices [under the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation."].)

Therefore, the Court grants Defendant's motion for judgment on the pleadings as to Plaintiff's fifth cause of action for violation of Business and Professions Code section 17200, et seq., with leave to amend.

<u>Ruling on Motion</u>

The Court **GRANTS** Defendant's motion for judgment on the pleadings as to the second cause of action for financial elder abuse, the third cause of action for negligent misrepresentation, and the fifth cause of action for violation of Business & Professions Code section 17200 et seq., with leave to amend.

Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc., § 438, subd. (h)(2).)

8. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
***HEARING ON MOTION IN RE:**
FILED BY: REN, YUE
<u>*TENTATIVE RULING:*</u>

Plaintiff has answered the Cross-Complaint. The **demurrer is now moot**.

9. 9:00 AM CASE NUMBER: C25-00311
CASE NAME: ERNISHA JOHNSON VS. HUNTER CURTIS CAMPBELL
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY: BALLARD, TONY
<u>*TENTATIVE RULING:*</u>

Plaintiff Ernisha Johnson seeks leave to file an amended complaint against an additional defendant. The Court received no opposition.

The initial complaint was filed February 3, 2025, with a First Amended Complaint filed July 21, 2025. Current Defendant Hunter Curtis Campbell filed an Answer on September 9, 2025. Plaintiff asserts that "[t]hrough recent discovery, Plaintiff identified an additional individual and/or business entity directly involved in the motor-vehicle incident described in the complaint." Pursuant to Code of Civil Procedure section 428.50(c), leave of the Court is required in this circumstance. There is no indication of bad faith and the Court does not see any prejudice. The lack of opposition does bolster both of those findings.

For the reasons stated above, the Motion is **granted**. Plaintiff must file the Second Amended Complaint within five days.

10. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING:

The demurrer filed by Nationstar Mortgage LLC d/b/a Rushmore Servicing and Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates, Series 2006-QO4, joined by Mortgage Electronic Registration Systems, Inc., is moot.

Plaintiff filed and served a First Amended Complaint (FAC) on April 1, 2026, which supersedes the original pleading. (*People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506.) Under Code of Civil Procedure section 472, a plaintiff may amend once as of right after a demurrer is filed, provided the amended pleading is filed and served no later than the deadline for filing an opposition. The demurrer was originally calendared for April 8, 2026, continued to April 9, 2026, in anticipation of reassignment to Department 10, and further continued by Department 10 to April 23, 2026. In their Notice of Non-Opposition filed March 30, 2026, Defendants asserted that the operative opposition deadline was March 26, 2026, based on the April 9 hearing date. Even assuming that is correct, the Court would grant leave to amend in any event. Any ruling on the original pleading would therefore be an idle act.

11. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING IN RE: JOINDER TO DEMURRER
FILED BY:
TENTATIVE RULING:

See Line 10.

12. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
***MOTION/PETITION TO COMPEL ARBITRATION AND DISMISS OR STAY PROCEEDINGS**
FILED BY: RINKER, MARJORIE
<u>*TENTATIVE RULING:*</u>

The Court **continues** the motion to compel arbitration to April 30, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: C25-02681
CASE NAME: 98 LA COLIMA LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT
FILED BY: 98 LA COLIMA LLC
<u>*TENTATIVE RULING:*</u>

Before the Court are two applications by plaintiff, 98 La Colima, LLC, to attach property owned by defendant HD 2670 Walnut Blvd Member, LLC and individual defendant, Premdip S. Dhoot.

Background

Before the Court are two applications by plaintiff, 98 La Colima, LLC, to attach property of defendant, HD 2670 Walnut Blvd Member, LLC and its member and manager, defendant Premdip S. Dhoot.

This case arises from a loan by plaintiff to defendant, HD 2670 Walnut Blvd Member, LLC. On August 24, 2022, defendant Dhoot signed a promissory note on behalf of HD 2670 Walnut Blvd Member, LLC. The note was for the principal amount of $500,000, to be re-paid, along with an additional $120,821.92 “Lender’s Return,” by January 1, 2024 (“Maturity Date”). (See Declaration of Syed A. Ali in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter “Ali Decl.,” Ex. 1 [Promissory Note] and Ex. 2 [Payment Guaranty].)

The complaint alleges five causes of action (though a numbering error might lead one to believe there are four): (1) Breach of Written Promissory Note, (2) Breach of Guaranty Agreement, (3) Account Stated, (3) Money Lent; and (4) Money Paid, Laid Out, and Expended. The second cause of action is alleged against Dhoot and the others are against HD 2670 Walnut Blvd Member, LLC.

Plaintiff contends defendants refuse to comply with their repayment obligations and intend to sell the properties it seeks to attach here. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (See Ali Decl., Ex. 3 [demand email].) In November 2025, plaintiff filed the present applications for right to attach order and order for writ of attachment. Each application is supported by a declaration by Syed A. Ali, plaintiff’s managing member.

With respect to HD 2670 Walnut Blvd Member, LLC, plaintiff seeks to attach 13 real properties and the following assets held in the name of the LLC: “real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles.” With respect to Dhoot, plaintiff seeks to attach, “[a]ll real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles" in Dhoot's name.

The applications are opposed by defendants, who argue plaintiff has failed to meet its burden to establish probable validity of the claim and has not shown a risk of irreparable harm. Defendants further contend the value of the property sought to be attached exceeds the amount of plaintiff's claim. Defendants generally agree with the background provided by plaintiff, including the amount of money loaned, the date loaned, and the terms of the documents.

Defendants argue that parties agreed to an oral modification of the Maturity Date after the project suffered significant schedule delays and setbacks. The alleged new date would be "after the Project was complete and the underlying property could be sold." (Declaration of Premdip S. Dhoot in Support of Opposition, hereinafter "Dhoot Decl.," ¶8.) Accordingly, defendants argue the alleged debt is not yet due, but they do not specify a specific new due date. Based on such purported modification, Dhoot argues there was no default on the promissory note that would trigger his liability on the personal guaranty.

At the time of this writing, the Court has not received a reply.

Exemptions

A defendant who opposes a right to attach order must give notice of his objection, "accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised." (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Here, Dhoot claims his personal property is exempt because it is not among the items listed in Code of Civil Procedure §487.010, subdivision (c) and amounts to less than $8,725. He also represents that he holds no title to any items listed in Code of Civil Procedure §487.010, subdivision (c).

The right to attachment of property owned by a natural person requires an adequate description. "Personal property" is insufficiently specific, as set forth in the opposition. Further, certain property plaintiff attempts to attach is not included in the list of attachable property in Code of Civil Procedure §487.010, subdivision (c), and is not properly listed in the application. Accordingly, in any proposed order, all references to "personal property," "motor vehicles," and "safe deposit boxes" shall be omitted from the description of property with respect to Dhoot.

Standard

Attachment is a pre-judgment creditor's remedy. Generally, an order of attachment may be issued only in an action for a claim of money that is based upon an express or implied contract where the total amount of such claim is a fixed or readily ascertainable amount not less than $500. (Code Civ. Proc., § 483.010, subd. (a).) A plaintiff may obtain a right to attach if the plaintiff establishes the probable validity of plaintiff's claim. (Code Civ. Proc. § 484.090, subd. (a)(2).) "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc. § 481.190; see also *Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120; see *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The Court must also find that the attachment is not sought for a purpose other than the recovery on the claim upon which the request for attachment is based and that the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. § 484.090.)

Discussion

The applications and supporting declarations adequately support the amount claimed and make all required representations to procure attachment. Plaintiff successfully demonstrates probable validity of its claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id*. at (a)(3)-(4).)

Probability of Prevailing

Plaintiff demonstrates a probability of prevailing on its breach of contract claim. Defendants have raised a modification defense that involves an adjustment to the due date. The defense appears to be insufficient for four reasons. First, while a written contract may be modified by oral agreement in certain circumstances (including execution and where there is new consideration), there is insufficient evidence of such circumstances here. (Civ. Code, § 1698 (b)-(c).) Second, with respect to the purported modification, defendants do not address the statute of frauds (Civil Code, §1624), which would bar oral modification pursuant to subdivision (a)(7), which relates to contracts for more than $100,000, not subdivision (a)(1), relating to agreements not to be performed within a year, as argued by plaintiff. Third, while the promissory note is silent as to how the lender would extend the payment deadline (see Ali Decl., Ex. 1, §3), the guaranty requires modifications of the underlying documents to be in writing (Ali Decl., Ex. 2, ¶4.1).

Irreparable Harm

Defendants contend plaintiff fails to show “irreparable harm.” Code of Civil Procedure, § 485.010 describes the “great or irreparable injury” prerequisite to obtaining attachment. The showing is satisfied where there is a danger that property may become unavailable. Such conditions exist where “[u]nder the circumstances of the case, it may be inferred that there is a danger that the property sought to be attached would be concealed, substantially impaired in value, or otherwise made unavailable to levy if issuance of the order were delayed until the matter could be heard on notice.” (*Id*. at subd. (b)(1).)

This standard is satisfied here. While plaintiff presents no specific evidence that defendants intend to conceal funds or deprive plaintiff of an available source of recovery, defendants confirm in the opposition papers that some project properties have already been sold and the inferences permitted by the above-cited statute are sufficient.

Value of the Property Sought to be Attached

With respect to defendants’ argument that they do not hold title to certain properties listed in the applications, and that the value of the properties sought to be attached exceeds the debt, their concerns are unfounded. Any property not owned by a particular defendant cannot be attached. Further, assuming such attachment leads to a lien, once the debt is satisfied, no further recovery would be warranted.

Undertaking

An undertaking is required prior to the issuance of a writ of attachment in order to pay the defendant for any wrongful attachment. (Code Civ. Proc., § 489.210.) Defendants argue the amount should be equal to the amount of the claimed debt ($712,459.23). Plaintiff responds that the defendants were required to show, through declarations, that the undertaking should be more than the statutory default, which is $10,000. (Code Civ. Proc., § 489.220 (a).)

Code of Civil Procedure, § 489.220 (b) states, the Court “shall” order an increased amount, but only where it finds "the probable recovery for wrongful attachment exceeds the amount of the undertaking." Here, defendants do not dispute that there is a debt owed (or that will be owed) in the amount shown in the documents. It is thus not clear to the Court what the monetary consequence of wrongful attachment would be. Accordingly, the amount of the undertaking shall be $10,000 per defendant.

Conclusion

With respect to defendant Dhoot, subject to (1) the plaintiff posting an undertaking in the amount of $10,000 and striking "personal property," "motor vehicles," and "safe deposit boxes" from Attachment 9, the application is granted.

With respect to defendant HD 2670 Walnut Blvd Member, LLC, subject to plaintiff posting an undertaking in the amount of $10,000, the application is granted.

Any required judicial council forms shall be revised and re-submitted consistent with this ruling.

14. 9:00 AM CASE NUMBER: MS25-0288
CASE NAME: CLAYTON GARDENS VS. NATHAN PARSONS
***HEARING ON MOTION IN RE:**
FILED BY: PARSONS, NATHAN
****TENTATIVE RULING:****

Defendant Nathan Parsons moves to vacate judgment entered after a court trial on February 23, 2026. The case has a rather lengthy—for an unlawful detainer proceeding—procedural history involving multiple trials and a federal bankruptcy action. On the day set for jury trial, Defendant failed to appear. He argues that he was in the hospital—for a limited stay of less than two hours—but he provides no proof of that visit, nor does he establish any diligence in notifying the Court or counsel of his condition before, during, or even immediately after he left the hospital. Instead, he waited two and a half weeks to file a motion. Defendant has failed to establish good cause for relief, under Code of Civil Procedure section 473(b). The Motion is **denied**.

15. 9:00 AM CASE NUMBER: MSC20-01999
CASE NAME: SANCHEZ VS ATHERSTONE FOODS, INC.
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY COURTROOM CLERK**
FILED BY:
****TENTATIVE RULING:****

Based on the declaration of the Settlement Administrator, the Court concludes that the disbursement of PAGA and Class Action Settlement Funds is complete and directs the administrator to release the remaining attorneys' fees.

16. 9:00 AM CASE NUMBER: MSC22-00243
CASE NAME: VIRELAS VS. SWEEZEY
***HEARING ON MOTION FOR DISCOVERY MTC RFA ANSWERS, PRODUCTION OF DOCUMENTS FOR INSPECTION, MONETARY AND EVIDENTIARY/ISSUE SANCTION ON DEFT MELISSA SWEEZEY**
FILED BY:
****TENTATIVE RULING:****

Plaintiff Antonio Virelas has filed this Motion to Compel responses to Requests for Admission and Requests for Production of Documents. Defendant Melissa Sweezey has filed no timely opposition. On April 21, 2026, she filed a "RESPONSE TO PLAINTIFF'S SUPPLEMENTAL STATEMENT OF FACTS AND REQUEST FOR ORDER TO DEEM ALL REQUESTED ADMISSIONS TRUE FOR MISCONDUCT TO PROVIDE OBJECTIONS OR RESPONSES RE: MOTION TO COMPEL AND SANCTIONS ON DEFENDANT." That document contains absolutely no information relating to the discovery requests and reads like an Answer. It is notable that Defendant had not filed an answer to the First Amended Complaint, so it is possible she got her captions confused. In any event, as of the date of this Tentative Ruling, the Court has received no opposition to the motion, let alone one that is timely.

Before the Court is unrefuted information the Plaintiff has propounded discovery and Defendant has entirely failed to respond.

It is unclear whether Plaintiff seeks monetary sanctions, as he has not articulated an amount sought. He does, however, clearly outline the other sanctions sought. He seeks an order prohibiting Defendant from:

1. Introducing and/or asserting any facts in support of Defendant's claims, defenses, and/or contentions, which are responsive to Plaintiff's discovery requests, at trial or in support/defense of any dispositive motions.
2. Producing, introducing, and/or identifying any witnesses, the identities of which are responsive to Plaintiffs discovery requests, in support of Defendant's claims, defenses, and/or contentions at trial or in support/defense of any dispositive motions.
3. Producing, introducing, and/or identifying any documents, which are responsive to Plaintiff's discovery requests, in support of her claims, defenses, and/or contentions at trial or in support/defense of any dispositive motions.
4. Introducing any facts or documentary evidence that are responsive to the Plaintiff's request for production at trial or in support/defense of any dispositive motions.

Given the uncontested information before the Court, these issue sanctions are **granted**.

17. 9:00 AM CASE NUMBER: N25-2180
CASE NAME: PETITION OF: ANDREW J. GALL AND SHAWNA L GALL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NEWREZ LLC

TENTATIVE RULING:*

This matter is scheduled for hearing on **July 9, 2026, at 9:00 am** in this department.

18. 9:00 AM CASE NUMBER: N25-2191
CASE NAME: CLAIM OF:ISA OGULISA OGUL
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:*

Summary

Petitioner and Guardian Ad Litem Ibrahim Ogul filed on November 5, 2025 a Petition for Approval of Compromise of Minor Isa Oguls's ("Minor") Claim Against Natalie Konz and Monterey Pines Apartments ("Petition"). The Court orders appearance of counsel and the Guardian Ad Litem. Zoom is acceptable.

Background

On September 18, 2023, Minor Ogul was bitten by a dog. He suffered puncture wounds to his left eyebrow, below his left eye, and a major puncture wound to his left cheek. He was treated and discharged. Petitioner avers that Minor has recovered completely.

At this time, Defendant Monterey Pines Apartments has offered settlement in the amount of $60,000. There are the following deductions: $9,216.00 for medical expenses (after deductions), $15,000 in attorneys' fees, and $3,181.28 in costs. The remainder, $32,602.72 remains to be paid for the benefit of the Minor. The Court could not locate a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court has questions to confirm that the Minor's injuries are full recovered. The medical records provided indicated the possibility of surgery in the future, as well as ongoing lingering issues relating to the trauma of the experience. Additionally, it is not clear whether this is a settlement of the entire matter (including Natalie Konz). If these issues are resolved to the Court's satisfaction, then the compromise will be approved. Finally, the Court needs to ensure that the Guardian Ad Litem understands that (1) if subsequent events show that the injuries have not fully healed, he cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18, unless the court orders otherwise.

19. 9:00 AM CASE NUMBER: N25-2361
CASE NAME: CLAIM OF:SARAH AVINA
***HEARING ON MINOR'S COMPROMISE**
FILED BY:

TENTATIVE RULING:*

Summary

Petitioner and Guardian Ad Litem Griselda Perez filed on December 4, 2025 Petition for Approval of Compromise of Minor Sarah Avina's ("Minor") Claim Against Tashiana Lashawantae Edgley-Johnson and Monica Griffon ("Petition"). The Court orders appearance of counsel and the Guardian Ad Litem. Zoom is acceptable.

Background

On January 24, 2024, Minor Avina and Petitioner were in a car accident. Minor Avina suffered a concussion, neck sprain, and soft tissue shoulder injuries. It appears she received treatment for all of her injuries. Petitioner avers that Minor has recovered completely.

At this time, Defendants' insurer, State Farm Insurance has offered settlement in the amount of $22,415. The Petition states that $8,319.40 of that shall go to Petitioner on her own behalf. There are no deductions for medical expenses, attorneys' fees, or costs. The remainder, $14,096 is to be paid for the benefit of the Minor.[1] Counsel checked box 17(d) that the attorney "did become concerned with this matter, directly or indirection, at the instance of a party against whom the claim is asserted or a party's insurance carrier," but did not explain the circumstances, as is required in Attachment 17d.

Ruling

After careful examination of the Petition and proposed orders, the Court has questions: (1) what is the basis for the apportionment of damages? (2) What are the circumstances to be explained in Attachment 17d? If these issues are resolved to the Court's satisfaction, then the compromise will be approved. Finally, the Court needs to ensure that the Guardian Ad Litem understands that (1) if subsequent events show that the injuries have not fully healed, she cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when she turns 18, unless the court orders otherwise.

20. 9:00 AM CASE NUMBER: N25-2363
CASE NAME: CLAIM OF:NEVAEH DEL TORRO
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:*

Summary

[1] The Petition lists it at $14,096, but if $8,319.40 is to be deducted from $22,415.00, it is actually $14,095.60.

Petitioner and Guardian Ad Litem Alexis del Torro filed on December 12, 2025 a Petition for Approval of Compromise of Minor Navaeh del Torro's ("Minor") Claim Against Alejandro Ramon Sanchez-Salinas ("Petition"). For the reasons stated below, the Court **grants** the Petition

Background

On July 6, 2026, Alejandro Ramon Sanchez-Salinas carjacked the vehicle owned by Jose Juan Fierro. This resulted in a collision that killed Angela Priscilla Fierro. Minor del Torro is the heir of the estate of Decedent Fierro. Minor del Torro was not present at the carjacking or collision but asserts claims involving Jose Juan Fierro's insurer's uninsured motorist claims as an heir. Petitioner avers that Minor has recovered completely.

At this time, the insurer has offered $25,000, to be placed in an annuity payable in 2 amounts of $23,452.61 in June and July 2040, when Minor is 18 years old. Guardian Ad Litem proceeded on these issues in pro per. There are no deductions for any expenses.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on December 4, 2025.

Law & Motion

ADD-ON

21. 9:00 AM CASE NUMBER: C25-02681
CASE NAME: 98 LA COLIMA LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT FILED BY: 98 LA COLIMA LLC
<u>*TENTATIVE RULING:*</u>

Please see Line 13.

22. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
HEARING ON SUMMARY MOTION JUDGMENT RE PLTFS CLAIMS
FILED BY: AMERICAN EQUIPMENT COMPANY
TENTATIVE RULING:*

Defendant American Equipment Company, Inc. (aka AMECO) moves for summary judgment with respect to the complaint by plaintiff, Shalini Sharma. The motion is **denied**, as discussed below. Even assuming defendant had met its initial burden to show entitlement to judgment as a matter of law on any of the causes of action, plaintiff has shown triable issues of material fact that preclude both summary judgment and adjudication.

I. Background

AMECO's undisputed facts describe the factual background of this action. Plaintiff Shalini Sharma worked as a heavy equipment operator. (SSUMF, Fact. No. 1, and Plaintiff's Response.) She was working for ARS Aleut Construction LLC, Inc. ("ARS") on a construction project at the Military Ocean Terminal Concord ("MOTCO") when she was injured by a large piece of glass that fell out of the cab door of a grader she was operating. (SSUMF, Fact. Nos. 2 and 22, and Plaintiff's Responses.)

The grader had been procured by moving party AMECO for ARS's use. AMECO, which is a site services company that either leases its own equipment or sources used equipment from other vendors to "support construction efforts." AMECO procured the grader through defendant, NorCal Rental Group, LLC ("NorCal") and/or its affiliate, co-defendant Peterson-Cat, who are in the business of leasing construction equipment. (SSUMF, Fact. Nos. 4-5, 8-9, 34, and Plaintiff's Responses.) ARS was dismissed from this lawsuit based on workers' compensation coverage. (SSUMF, Fact. No. 3, and Plaintiff's Response.)

When AMECO sought to obtain the grader, none of its existing vendors had a suitable grader except NorCal, which at that time was a new vendor for AMECO. (SSUMF, Fact. No. 10, and Plaintiff's Response.) AMECO and NorCal agreed NorCal would provide a Caterpillar 140M Motor Grader with an auto-leveling system to ARS for use at the MOTCO construction site. (SSUMF, Fact. No. 11, and Plaintiff's Response.) The specifics concerning the rental agreement between AMECO and NorCal are disputed and not particularly relevant to the claims by plaintiff against AMECO. (SSUMF, Fact. Nos. 12-13, and Plaintiff's Response.)

On or about August 17, 2020, NorCal delivered a grader to the jobsite. (SSUMF, Fact. No. 14, and Plaintiff's Response.) No one from AMECO was ever present at the jobsite and AMECO did not otherwise come into contact with the grader. (SSUMF, Fact. No. 15, and Plaintiff's Response.) NorCal did not disclose to AMECO that it was providing an M2 series grader instead of the M3 series that AMECO had ordered for ARS. (SSUMF, Fact. No. 16, and Plaintiff's Response.) ARS did not reject the non-compliant equipment or alert AMECO to any issues with the grader upon delivery. (SSUMF, Fact. No. 17, and Plaintiff's Response.)

Based on a request from ARS, someone referred to only as the "Trimble Guy" came to the MOTCO jobsite to inspect the grader but performed no repairs. (SSUMF, Fact. No. 18, and Plaintiff's Response.) Plaintiff claimed at her deposition that this "Trimble Guy" represented to her that the grader was a "rebuild" and not an original Caterpillar 140M grader. (SSUMF, Fact. No. 19, and

Plaintiff's Response.) AMECO had nothing to do with any modifications to the grader. (SSUMF, Fact. No. 20, and Plaintiff's Response.)

Despite reporting multiple issues with the grader to ARS, including to the door mechanism, the plaintiff continued to use the machine at ARS's instruction. (SSUMF, Fact. No. 21, and Plaintiff's Response.) A pane of glass fell from the grader, though it remained largely intact. (SSUMF, Fact. No. 24, and Plaintiff's Response.) Plaintiff continued to work at the jobsite after the accident. (SSUMF, Fact. No. 25, and Plaintiff's Response.)

Plaintiff initially filed suit against ARS in Contra Costa County in March 2021. (SSUMF, Fact. No. 26, and Plaintiff's Response.) Plaintiff named Caterpillar Inc., the actual manufacturer of the grader, as a defendant in her third amended complaint but has since voluntarily dismissed that entity, focusing instead on claims that the grader had been modified from its original condition. (SSUMF, Fact. No. 27, and Plaintiff's Response.) AMECO did not manufacture, design, or own the grader. (SSUMF, Fact. Nos. 28-30, and Plaintiff's Responses.) AMECO did not take any steps to help bring the grader to the *initial* consumer market. (SSUMF, Fact. No. 31, and Plaintiff's Response.) AMECO had no ability to influence the manufacturing process of the grader. (SSUMF, Fact. No. 32, and Plaintiff's Response.)

AMECO has no relationship, whether direct or indirect, with Caterpillar, the manufacturer of the grader, with respect to the grader's design or manufacture, though parties dispute the extent to which AMECO "distributed" the grader. (SSUMF, Fact. Nos. 33 and 35, and Plaintiff's Responses.) The grader was not new at the time that it was delivered to the MOTCO jobsite. (SSUMF, Fact. No. 36, and Plaintiff's Response.) AMECO relies on third party vendors to ensure that the equipment they provide is safe and in good working order. (SSUMF, Fact. Nos. 41, 49, and Plaintiff's Responses.) AMECO asserts this was justified and in conformance with custom and practice. (SSUMF, Fact. Nos. 43-48, and Plaintiff's Responses.) AMECO also argues this is consistent with its rental agreement. (SSUMF, Fact. No. 42, and Plaintiff's Response.)

Plaintiff does not know anything about AMECO and has never interacted with any AMECO representative. (SSUMF, Fact. No. 37, and Plaintiff's Response.) ARS, as the general contractor, was responsible for obtaining the equipment necessary to complete the construction work at the MOTCO jobsite. (SSUMF, Fact. No. 40, and Plaintiff's Response.)

Plaintiff offers additional facts she contends are material, and which she contends create triable issues here. Plaintiff asserts AMECO's reliance on a new vendor without any proven performance was unreasonable. (Plaintiff's Additional Material Fact No. 10, and AMECO's Response.)

Overall, the facts provided by both parties indicate AMECO did not conduct significant independent investigation concerning the condition or safety of the grader, and never received any information that would suggest the grader was unsafe prior to the plaintiff's accident.

In March 2021, plaintiff filed this suit to recover for her injuries. The currently operative complaint is the Third Amended Complaint, filed on July 26, 2022. The causes of action alleged in that complaint are (1) Negligence – Products Liability; (2) Strict Liability – Products Liability; (3) Breach of Implied Warranty; and (4) Negligence.

II. Motion and Opposition

AMECO moves for summary judgment or, in the alternative, summary adjudication. The notice of motion describes the issues for summary adjudication as each of the causes of action in the

Third Amended Complaint.

AMECO argues it acted only as a “broker” and was thus not responsible for the grader’s condition. It asserts that plaintiff cannot establish strict liability as a matter of law and that, because strict liability is not available, neither is negligence products liability. As to the implied warranty cause of action, AMECO argues that its lack of contractual privity with plaintiff prohibits this cause of action. Finally, with respect to ordinary negligence, AMECO argues there is nothing it could have done that would have prevented the harm here.

In support of the motion, defendant provides the SSUMF, a declaration from its the Vice President of Finance, and a declaration from counsel which attaches various litigation documents filed in this Court and in the U.S. District Court for the Northern District of California, documents provided in discovery, and excerpts of various deposition transcripts.

Plaintiff opposes the motion. She argues, as a preliminary matter, that the motion is untimely because it is scheduled for hearing less than 30 days prior to trial. She also argues that AMECO fails to shift the initial burden and, even if it does so, there are triable issues of fact. In support of her opposition, plaintiff submits a declaration from counsel which attaches excerpts of deposition transcripts as well as documents provided in discovery. Plaintiff provides her own additional material facts, and objects to evidence provided by AMECO.

Plaintiff also responds to the SSUMF, though the Court notes she has identified multiple facts as “disputed” with citations to her own additional facts. This is *not* in compliance with the summary judgment statute or California Rules of Court, which require citations to evidence. (Code Civ. Proc., § 437c (b)(3); Cal. Rules of Court, Rule 3.1350 (f)(2).) This approach obfuscates whether there is actually a dispute of fact (contrary to the policy behind the separate statement requirement) and plaintiff’s counsel is cautioned to follow these rules in the future.

AMECO provides a reply brief as well as a declaration from its attorney and responses to plaintiff’s additional material facts.

III. Evidentiary Matters

Plaintiff’s objections to the Declaration of Morgan Tiller, the Vice President of Finance for AMECO, based on lack of foundation, are **sustained**. (See Volume of Evidence 3 of 3 in Support of Motion, Ex. K.) The only foundational evidence in the declaration is in the first paragraph and is insufficient to provide the necessary background. (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 692, fn. 1; see also Roy Brothers Drilling Co. v. Jones (1981) 123 Cal.App.3d 175, 182, 176 Cal. Rptr. 449 [requirements of Code Civ. Proc., § 437c, subd. (d), are not met merely by reciting the conclusion the declarant can competently testify; the declaration must set forth facts establishing the declarant's competence].)

In addition to the document entitled “Objection to Evidence Provided with the Motion for Summary Judgment,” plaintiff also raises objections within the response to the separate statement as to multiple facts. But there is no authority providing for "objections" to facts; facts can only be disputed or undisputed. (See Code Civ. Proc, § 437c, subd. (b)(3); Cal. Rules of Court, Rule 3.1350(f)(2).) To the extent these objections to facts target the underlying evidence for reasons not articulated in the separate objections document, they are **overruled**.

IV. Standard

To be entitled to judgment as a matter of law, a defendant (or cross-defendant) must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant has met its burden of showing that a cause of action has no merit if it demonstrates the absence of any single essential element of plaintiff's case or a complete defense to plaintiff's action. (Code of Civ. Proc., § 437c, subd. (o).) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists as to a cause of action -or a defense thereto. (Code of Civil Procedure § 437c, subd. (p)(2).) A plaintiff may not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists. (*Ibid*.)

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party's evidence and liberally construe the opposing party's evidence. (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass'n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

V. Discussion

A. Timeliness of Motion

Plaintiff argues the motion is untimely and should not be entertained on its merits. The summary judgment statute does require that the motion "shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c (a)(3).)

AMECO asserts that the date was scheduled by the Court and therefore good cause has already been established for a hearing within 30 days of trial. Limited availability for MSJ hearings further delayed the hearing an additional week (instead of April 16, the motion is now being heard on April 23).

Because AMECO's motion was filed and served more than 80 days prior to the hearing, sufficient notice as required by the summary judgment statute *was* provided. The Court's own scheduling limitations constitute good cause for the setting of the hearing within 30 days of trial. The motion is therefore entertained on the merits.

B. Issue No. 1 - Negligent Products Liability

Regarding the first cause of action, AMECO argues it fails because the claim for strict product liability fails. The premise is incorrect. In California, if a lessor in the business of leasing supplies a defective product for a profit, the doctrine of strict liability in tort applies. (*Price v. Shell Oil Co*. (1970) 2 Cal. 3d 245, 253–254; see also *Fakhoury v. Magner* (1972) 25 Cal.App.3d 58, 63–64.)

With respect to negligence, AMECO argues the standard is the same, but that a negligent act must also be shown with respect to this cause of action. Establishing negligent rental of products requires a plaintiff to show a failure by the defendant to use reasonable care to (1) inspect the products for defects; (2) make them safe for their intended use; and (3) adequately warn of any known dangers. (CACI 1224.) While AMECO criticizes the use of CACI as a standard, the instruction is based on Civil Code, § 1955, which states that a lessor of personal property must "put it into a condition fit for the purpose for which he or she leases it, and repair all deteriorations thereof not occasioned by the fault of the lessee and not the natural result of its use."

Plaintiff's first cause of action alleges that defendants "are liable for a myriad of certain acts, wrongs and/or omissions, each and all amounting to negligence." There is not any list of specific actions plaintiff alleges breached AMECO's duty. Instead, she alleges several specifics, such as failure to warn, and also alleges "[o]ther acts of negligence to be detailed at trial."

Here, AMECO's moving papers do not attempt to demonstrate which acts plaintiff intends to establish that qualify as a breach. It provides no contention interrogatories that might limit such universe of facts. Instead, AMECO attempts to anticipate plaintiff's theory. AMECO does not attempt to show any inspection by AMECO or any significant investigation into the condition of the grader. AMECO does not assert a representative was sent to inspect the grader, or that photographs and repair records were obtained, etc. As a result, plaintiff's arguments in the opposition concerning the lack of investigation itself constituting breach highlight that AMECO fails to meet its burden to show entitlement to judgment as a matter of law.

AMECO argues it was entitled to rely on others to ensure the grader was "rent-ready." Whether reliance on others to inspect the equipment constitutes a breach of AMECO's duty as a lessor is a question of fact not settled by the evidence presented.

Assuming AMECO had satisfied its initial burden, there are still disputes of material fact, as highlighted by plaintiff's response to the SSUMF (see Fact Nos. 35, 48, and plaintiff's responses) and AMECO's own responses to plaintiff's Additional Material Facts, many of which AMECO concedes are "disputed." Inclusion of any fact in the separate statement concedes the materiality of that fact. (See *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521 and *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

Summary adjudication is denied on the first cause of action.

C. Issue No. 2 – Strict Product Liability

AMECO argues that for plaintiff to prevail, she must show either a manufacturing defect, design defect, or failure to warn. (*Anderson v. Owens-Corning Fiberglas Corp.* (1991) 53 Cal.3d 987, 995.) In its moving papers, AMECO does not seek to establish that the grader lacked a defect, or that the difference in model that was provided versus promised had no effect. Instead of directing its evidence to the *lack* of defect or *adequacy* of any warning, AMECO contends it was not the manufacturer or designer. The undisputed facts *do* support AMECO was not the manufacturer or designer . AMECO did not manufacture or design the grader (see SSUMF Fact Nos. 28-29), but strict product liability can be found against lessors, as noted above. (*Price, supra,* 2 Cal.3d at 250, 253–254 [strict liability in tort is applicable to professional or commercial bailors in the same manner as to sellers].)

The motion's analysis ignores the role AMECO did play, which was to rent plaintiff's employer the unsafe equipment. AMECO points out that plaintiff has dismissed Caterpillar, the actual manufacturer of the grader, but this sort of tactical litigation decision by plaintiff does not establish an absence of liability on AMECO's part. Causation is generally a question for the jury.

Assuming AMECO had satisfied its initial burden, there are still disputes of material fact, as highlighted by plaintiff's response to the SSUMF (see Fact Nos. 86, and plaintiff's response) and AMECO's own responses to plaintiff's Additional Material Facts, many of which AMECO concedes are "disputed." Inclusion of any fact in the separate statement concedes the materiality of that fact. (See *Insalaco, supra,* 49 Cal.App.5th at 521 and *Nazir, supra,* 178 Cal.App.4th at 252.)

Summary adjudication is denied as to the second cause of action.

D. Issue No. 3 – Breach of Implied Warranty

AMECO contends that the third cause of action fails because it was not in privity with plaintiff. AMECO cites case law which states that "[p]rivity of contract is a prerequisite in California for recovery on a theory of breach of implied warranties of fitness and merchantability." (*Blanco v. Baxter Healthcare Corp*. (2008) 158 Cal.App.4th 1039, 1058-1059.) Notably, none of the facts in the SSUMF state that there was *no* privity with plaintiff.

While this particular fact would likely not have been disputed, such a fact is fundamental to showing that lack of privity bars the claim. Plaintiff's opposition raises, for the first time, a theory pursuant to Commercial Code section 10213, specifically relating to an implied warranty for a particular purpose in rental transactions. This section was not originally pleaded, but plaintiff did plead "under the law of warranties as expressed in the Uniform Commercial Code." Plaintiff may not, and need not, amend. AMECO had the burden of isolating the facts and theories on which plaintiff will rely in order to show a lack of any material disputes.

Summary adjudication is therefore denied as to the third cause of action.

E. Issue No. 4 – Negligence

As to the fourth cause of action for general negligence, the reasons discussed above for denial of summary adjudication with respect to negligent products liability apply with equal force to this theory, which may or may not be duplicative (since a plaintiff may not recover the same damages twice, duplication poses no risk for the purposes of trial). The assertions made by AMECO in the moving papers fail to address plaintiff's actual theory (which may include, but is not limited to failing to conduct a reasonable inspection of the equipment prior to the rental).

Summary adjudication is therefore denied as to the fourth cause of action.

F. Additional Material Factual Disputes

Many of AMECO's own responses to plaintiff's Additional Material Facts contend the facts are "disputed." Such a designation, without mention of the materiality or lack thereof, concedes materiality.

Accordingly, the motion for summary judgment must be denied.

23. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
HEARING ON SUMMARY MOTION JUDGMENT RE NORCAL'S AND PETERSON HOLDING COMPANY'S CLAIMS
FILED BY: AMERICAN EQUIPMENT COMPANY
****TENTATIVE RULING:****

Defendant American Equipment Company, Inc. (aka AMECO) moves for summary judgment or summary adjudication with respect to the amended cross-complaint by defendant and cross-complainant, Norcal Rental Group, LLC ("Norcal") and the cross-complaint by defendant and cross-complainant Peterson Holding Company ("Peterson"). The motion is **denied**, as discussed below.

I. Background

Plaintiff Shalini Sharma was working as a heavy equipment operator for ARS Aleut Construction LLC, Inc. ("ARS") on a construction project at the Military Ocean Terminal Concord ("MOTCO") when she was injured by a large piece of glass that fell out of the cab door of a grader she was operating. The grader had been procured by third party, AMECO, for ARS's use. AMECO had obtained the grader from another third party, NorCal (DBA Cresco). The grader was manufactured by Caterpillar and owned by Peterson.

Plaintiff initially filed suit against ARS in Contra Costa County in March 2021 to recover for her injuries. She later added Norcal, Peterson, and AMECO. In response, Norcal cross-complained against AMECO alleging a single cause of action for express indemnity. Peterson also cross-complained against AMECO alleging equitable indemnity, contribution, and declaratory relief. AMECO cross-complained against Norcal and ARS.

II. Motion and Oppositions

AMECO purports to move for summary judgment or, in the alternative, summary adjudication, with respect to both Norcal and Peterson on separate pleadings. In fact, the motion is three motions combined into one. The first motion is from AMECO's position as cross-defendant, and relates to Norcal's cross-complaint alleging a single cause of action for indemnity. The second motion, also from AMECO's position as cross-defendant, relates to Peterson's cross-complaint containing three causes of action. The third motion is from AMECO's position as cross-complainant on its cross-complaint against Norcal containing seven causes of action, only one of which is argued in the motion. The specific issues are laid out in the Separate Statement of Undisputed Material Facts ("SSUMF") as follows:

1) ISSUE NO. 1: NORCAL CANNOT ESTABLISH ITS CLAIM FOR BREACH OF AN IMPLIED INDEMNIFICATION AGREEMENT AGAINST AMECO
2) ISSUE NO. 2: AMECO IS ENTITLED TO A DECLARATORY JUDGMENT AGAINST NORCAL ON AMECO'S CROSS-COMPLAINT (SEVENTH CAUSE OF ACTION)
3) ISSUE NO. 3: PETERSON CANNOT ESTABLISH ITS FIRST CAUSE OF ACTION FOR EQUITABLE INDEMNITY AGAINST AMECO
4) ISSUE NO. 4: PETERSON CANNOT ESTABLISH ITS SECOND CAUSE OF ACTION FOR CONTRIBUTION AGAINST AMECO
5) ISSUE NO. 5: PETERSON CANNOT ESTABLISH ITS THIRD CAUSE OF ACTION FOR DECLARATORY RELIEF AGAINST AMECO

In support of the motion, AMECO provides the SSUMF, a declaration from its the Vice President of Finance, and a declaration from counsel which attaches various litigation documents filed in this Court and in the U.S. District Court for the Northern District of California, documents provided in discovery, and excerpts of various deposition transcripts.

Norcal opposes the motion. It argues the motion is untimely and that there are disputes of material fact that require denial of the motion. In support of the opposition, Norcal submits a declaration from counsel, Allison N. Steward, which attaches excerpts of deposition transcripts as well as documents provided in discovery. Norcal responds to the SSUMF, provides its own additional material facts, and objects to evidence provided by AMECO.

Peterson also opposes the motion, arguing that AMECO fails to meet its initial burden, but even if it had, there are clear disputes of fact which include which terms control the indemnity claims and whether Peterson knew AMECO would be re-renting the equipment.

Peterson offers its response to the SSUMF which notes multiple "disputes" with respect to the facts set forth by AMECO. Instead of citing evidence to support these disputes, Peterson cites its own additional facts. This is *not* in compliance with the summary judgment statute or California Rules of Court, which require citations to evidence. (Code Civ. Proc., § 437c (b)(3); Cal. Rules of Court, Rule 3.1350 (f)(2).) This approach obfuscates whether there is actually a dispute of fact (contrary to the policy behind the separate statement requirement, which is to make the Court's job easier, not harder). As an additional remark to counsel for Peterson, the deposition transcripts submitted in support of the opposition are not highlighted or marked in any way and, in fact, appear to include all pages and indices. This is not in compliance with the California Rules of Court which explicitly state that only relevant pages must be attached and relevant portions highlighted. (Cal. Rules of Court, rule 3.1116(b)-(c).) Counsel for Peterson is cautioned to follow these rules in the future.

Peterson also provides its own statement of additional facts. In support, Peterson provides a declaration from its counsel which attaches excerpts from deposition transcripts of various individuals, invoices from Norcal, and the Terms and Conditions Norcal contends it sent to AMECO. Peterson also objects to AMECO's evidence, as further mentioned below.

In reply, AMECO provides a supplemental declaration from its attorney which attaches additional deposition testimony and photographs. AMECO also provides a statement in response to the additional facts offered by both Norcal and Peterson.

III. Evidentiary Matters

Peterson's objections to the Declaration of Morgan Tiller, the Vice President of Finance for AMECO, based on lack of foundation, are **sustained**. (Volume of Evidence 3 of 3 in Support of Motion, Ex. K [Declaration of Morgan Tiller].) The only foundational evidence in the declaration is in the first paragraph and is insufficient to provide the necessary background. (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 692, fn. 1; see also *Roy Brothers Drilling Co. v. Jones* (1981) 123 Cal.App.3d 175, 182, 176 Cal. Rptr. 449 [requirements of Code Civ. Proc., § 437c, subd. (d), are not met merely by reciting the conclusion the declarant can competently testify; the declaration must set forth facts establishing the declarant's competence].)

IV. Standard

To be entitled to judgment as a matter of law, a party must show by admissible evidence that the action has no merit or that there is no defense. (Code Civ. Proc., § 437c, (a)(1), (d).)

A plaintiff (or cross-complainant) must show by admissible evidence each element of the cause of action entitling the party to judgment on the cause of action. (Code Civ. Proc., § 437c (p)(1).) On the other hand, a defendant or cross-defendant meets its burden of showing that a cause of action has no merit if it shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).) Once the moving party has met its burden, the burden shifts to the opposing party to show that a triable issue of one or more material facts exists. (*Id*. at subd.(p)(1)-(p)(2).)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party's evidence and liberally construe the opposing party's evidence. (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass'n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

V. Discussion

A. Denial on Procedural Grounds

Norcal argues the motion is untimely and should not be entertained on its merits. The summary judgment statute does require that the motion "shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c (a)(3).)

AMECO asserts that the date was scheduled by the Court and therefore good cause has already been established for a hearing within 30 days of trial. Limited availability for MSJ hearings further delayed the hearing an additional week (instead of April 16, the motion is now being heard on April 23).

Because AMECO's motion was filed and served more than 80 days prior to the hearing, sufficient notice as required by the summary judgment statute *was* provided. The Court's own scheduling limitations constitute good cause for the setting of the hearing within 30 days of trial.

However, the motion *does* suffer from significant procedural flaws. AMECO here challenges two separate pleadings and seeks judgment on its own cross-complaint's cause of action for declaratory relief. The specific issues are not set forth in the notice, however, as required by the California Rules of Court. (Cal Rules of Court, Rule 3.1350(b).) The purported issues *are* laid out in the Separate Statement of Undisputed Material Facts ("SSUMF") as follows:

6) ISSUE NO. 1: NORCAL CANNOT ESTABLISH ITS CLAIM FOR BREACH OF AN IMPLIED INDEMNIFICATION AGREEMENT AGAINST AMECO (this issue is based on Fact Nos. 1-62)
7) ISSUE NO. 2: AMECO IS ENTITLED TO A DECLARATORY JUDGMENT AGAINST NORCAL ON AMECO'S CROSS-COMPLAINT (SEVENTH CAUSE OF ACTION) (this issue is based on Fact Nos. 63-101)
8) ISSUE NO. 3: PETERSON CANNOT ESTABLISH ITS FIRST CAUSE OF ACTION FOR EQUITABLE INDEMNITY AGAINST AMECO (this issue is based on Fact Nos. 102-141)
9) ISSUE NO. 4: PETERSON CANNOT ESTABLISH ITS SECOND CAUSE OF ACTION FOR CONTRIBUTION AGAINST AMECO (this issue is based on Fact Nos. 142-190)
10) ISSUE NO. 5: PETERSON CANNOT ESTABLISH ITS THIRD CAUSE OF ACTION FOR

This posture leads to confusion and compels denial on procedural grounds.

“A party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding,” or “a party may move for summary adjudication as to one or more causes of action *within an action*.” (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.) These references to “an action” in the summary judgment statute are singular references. The word "action" is defined as "an ordinary proceeding in a court of justice by which one party prosecutes another […]." (Code Civ. Proc., § 22, emphasis added.)

No authority, of which this Court is aware, permits a party to challenge two separate cross-complaints (aka actions) via one motion, and also seek declaratory relief on its own cross-complaint (aka action). (See *Westamerica Bank v. MBG Industries, Inc*. (2007) 158 Cal.App.4th 109, 134 [discussion in context of 998 offers noting that where complaint and a cross-complaint are both pending, there are actually two separate simultaneous actions pending].)

Further, the motion here does not necessarily seek “summary adjudication in the alternative,” as permitted by section 437c. Code of Civil Procedure section 437c(f)(2) provides, in relevant part, “[a] motion for summary adjudication may be made by itself *or as an alternative to a motion for summary judgment* and shall proceed in all procedural respects as a motion for summary judgment.” (Emphasis added.) Here, while the motion purports to be made in the alternative, it requests both summary adjudication and summary judgment as to separate pleadings. For example, the cross-complaint by Norcal *only* asserts an equitable indemnity cause of action and a grant of the motion with respect to that cross-complaint would actually be summary judgment (because completely resolving Norcal’s equitable indemnity cause of action would end all claims by Norcal), but AMECO’s first six causes of action would still be at issue because they are not even raised by this motion so the motion can only be considered one for summary adjudication as to AMECO’s affirmative claims.

AMECO improperly combines at least three motions into one, without complying with summary adjudication notice requirements. Since the Opposition documents largely ignore this procedural issue and cross-complainants have opposed the motion on the merits, the Court briefly discusses the merits below.

B. Merits Discussion

1. Issue No. 1: Norcal’s Cross-Complaint

AMECO seeks to show Norcal cannot prevail on its claim for express contractual indemnity because Norcal never communicated the terms and conditions on which this claim is based. Accordingly, Norcal’s terms never became a part of the contract between the entities. Ameco’s argument on this issue is based on Fact Nos. 1-62.

AMECO relies on various facts which *suggest*, but do not definitively *establish*, that it never received the terms and conditions necessary to Norcal’s claim. (See SSUMF Fact Nos. 11, 17, 43.) Fact Number 43 states, “There is no evidence that NorCal ever provided to AMECO the ‘terms and conditions’ that it contends governs the rental of the grader except as a standalone document in discovery.” This fact is not supported by the evidence cited, which is an excerpt of a deposition transcript of Aaron Veuve, who appears to be an employee of Norcal. He testifies that generally Norcal’s original invoices are two-sided and copies are one-sided, but he does not appear to have been the person who sent the document nor is any foundation laid for his knowing whether AMECO (a separate company) ever received the terms and conditions.

Because AMECO does not definitively show that it never received the terms and conditions, the Court cannot conclude that AMECO is entitled to judgment on this issue. However, it may be worth mentioning that, had AMECO successfully shifted the burden of production here, Norcal's purported dispute is also insufficiently supported by its evidence. Norcal offers its own allegations (¶¶5-6 of its cross-complaint) concerning an "implied in fact" contract allegedly arising from Norcal's "quote/offer and invoices" that "contained and incorporated written Terms and Conditions on the reverse side." But in opposing summary judgment, a "cross-complainant shall not rely upon the allegations […] of its pleadings to show that a triable issue of material fact exists […]."(Code Civ. Proc., § 437c (p)(2).) While Norcal also cites an excerpt from the Deposition of Patrick Michael Puccinelli, the cited testimony does not support that AMECO ever received Norcal's terms and conditions.

Still, the motion must be denied for AMECO's failure to shift the burden to Norcal. Further, AMECO's own responses to Norcal's Additional Material Facts assert many of the facts are "disputed." Such a designation concedes materiality and a dispute.

2. Issue No. 2: AMECO's Cause of Action for Declaratory Relief Against Norcal (Seventh Cause Of Action)

As a second "issue" on which AMECO seeks summary adjudication, AMECO asserts entitlement to judgment on its seventh cause of action for declaratory relief which states, in relevant part, that it is entitled to be fully indemnified by "cross-defendants" (which include Norcal) pursuant to their express written contracts with AMECO.

Norcal argues the procedural posture is grounds for denial. (See Norcal's Memorandum in Support of Opposition, 6:15-7:2.) The Court has already set forth why multiple pleadings cannot be determined in one motion such as the present motion.

Judgment on this "issue" would also be improper as the allegations at issue are integral to other causes of action asserted in AMECO's cross-complaint. A party may not obtain a summary adjudication of the declaratory relief cause of action while ignoring its effect as to the other substantive causes of actions. If it could, the result would fully subvert the restrictions of Code Civ. Proc., § 437c, subd. (f)(1). (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 321 [the statute requires that summary adjudication completely dispose of the cause of action, affirmative defense, claim for damages, or issue of duty].)

Summary adjudication as to the second issue is denied.

3. Issue Nos. 3-5 Peterson's Cross-Complaint

AMECO argues that Peterson's causes of action fail, but does not attempt to separately argue them. Instead, it asserts that none have merit because, at least in part, "NorCal and Peterson both knew AMECO was going to re-rent the grader." This issue in dispute (see Additional Material Fact No. 1 and AMECO's Reply). Similarly, AMECO's own responses to other additional facts offered by Peterson label many of the facts as "disputed." Such a designation concedes materiality and a dispute.

The Court need not further explore the merits to the arguments against Peterson. Summary adjudication as to the third through fifth issues is denied.

24. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS GREGORY BROOKS
***HEARING ON MOTION IN RE: NTC AND MOTION FOR RECONSIDERATION**

****TENTATIVE RULING:****

As previously discussed, **parties to appear**.